TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JULY 31, 2017
MINUTES

Present: Mason Smith, Chair, Stephen Duke, Stephen Wood, Bobby Carrier, Glen Cowden.
Absent: Joseph Belton, Barry Wolff.
Staff: Michael Robertson, Lynnette Lynes

Mr. Smith called the meeting to order at 6:00 pm and reviewed the procedures with the public. He administered the oath to those speaking.

1. Approval of Minutes

Mr. Wood moved for approval of the minutes. Mr. Cowden seconded the motion. All in favor.

2. Public Comment & General Correspondence

There being no comments, Mr. Smith continued with the agenda.

3. Business

A. V-20-17, 407 Barbadian Way, 539-08-00-209, request for relief from the strict standards of §156.107(a)(3) to allow the encroachment of a covered deck.

This item was withdrawn by staff as it was determined that a variance was not necessary.

B. V-21-17, 1117 Highway 41, WITHDRAWN BY APPLICANT, 558-00-00-028, Request for relief from the strict standards of §156.201 to allow a ten (10) foot bufferyard. The ordinance requires a minimum of twenty-five (25) feet.

C. V-22-17, 1117 Highway 41, WITHDRAWN BY APPLICANT, 558-00-00-028, Request for relief from the strict standards of §156.108 to allow a reduction in the 75 foot minimum distance required between one way driveways.

These items were withdrawn by the applicant.

D. V-23-17, 708 Kent Street, 535-04-00-050, Request for relief from the strict standards of §156.111 (A)(1) to allow an accessory use encroachment of two (2) feet from rear yard and three (3) feet from side yard. The ordinance requires a minimum six (6) foot setback.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Les Phillips, applicant, reviewed the request with the board.

Mr. Robertson asked for clarification on the building separation. Mr. Phillips answered that the separation is needed in order to have the space needed to be able to park the car.

Mr. Cowden asked if the building is currently under construction. Mr. Phillips answered in the negative. He stated that the main residence is completed. He stated that they are proposing a renovation.

Mr. Wood asked if the garage could be reconfigured. Mr. Phillips answered that it could be done, but the driveway would essentially take up the entire back yard.

Mr. Smith asked if there would be enough space if the garage was moved forward two feet. Mr. Phillips answered in the negative and stated that they tried different scenarios and the proposed layout was the best option.

Ms. Phillips asked if a fifteen-foot separation is required between buildings. Mr. Robertson answered that the fifteen-foot separation is required between buildings on adjacent lots.

There being no comments, Mr. Smith close the public comments.

Mr. Cowden suggested that if moved within the setbacks, it would basically take up the entire back yard. Mr. Cowden asked what is located adjacent to the accessory structure. Mr. Phillips answered that there is a garage on the adjacent property.

Mr. Wood suggested that denial of the request would not unreasonably restrict the utilization of the property.

Mr. Smith stated that he understands the desire to have a garage, but suggested that it would not prevent utilization of the property.

Mr. Cowden moved for approval of the request based on the findings that there is a hardship that they will not have full utilization of property. Mr. Smith seconded the motion. Motion passed on a 3 to 2 vote with Mr. Cowden, Mr. Smith, Mr. Duke in favor; Mr. Carrier and Mr. Wood opposed.

E. V-24-17, 638 Royall Ave., 532-09-00-135, Request for relief from the strict standards of §156.225 to allow the removal of an historic tree.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Smith administered the oath to Mr. Baird Armstrong. Mr. Armstrong, architect, reviewed the request with the Board.

Mr. Smith asked about the historic trees in the front of the property and how they were allowed to be removed. Mr. Armstrong answered that the trees were determined to be in poor condition.

Mr. Wood asked about tree protection zones. Mr. Robertson answered that the ordinance requires a six-foot radius tree protection zone per inch of tree. He stated that no construction is allowed within the tree protection zones unless approved by staff or the Board of Zoning Appeals. Mr. Wood asked if the terrace could be constructed so that it does not encroach into the tree protection zone. Mr. Armstrong answered that the design has already been approved. He stated that the tree is declining, so they would like to remove it and plant additional trees.

Mr. smith administered the oath to Ms. Sharon Verbance. Ms. Verbance, homeowner, expressed concern that the tree already has two significant limbs that are dead and need to be removed and that the tree would continue to decline.

Mr. Wood asked for clarification on the variance request. Mr. Robertson answered that the pool and terrace does not currently encroach into the tree

protection zone so it was not approved for removal during the site plan approval process. He stated that the applicant would like to remove the tree, so a variance is required.

Mr. Duke stated that he does not see where the criteria for approval of a variance has been met.

There being no further comments, Mr. Smith closed public comment.

Mr. Wood moved for denial of the request based on the findings that the criteria A, B, and C have not been met. Mr. Duke seconded the motion. All in favor.

F. Approval of Final Orders

This item was deferred.

Mr. Smith noted that he will not be at the August meeting.

There being no further business, the meeting adjourned at 6:44 pm.

Submitted by,
L. Lynes
BOZA07312017